

Rahulpuri v. General Manager, Kanpur Electricity Supply Co. Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 February 2016 · Writ-C No. 36948 of 2012 · **Writ dismissed as infructuous; 2012 Clause 4.4 direction discharged.**

HEADNOTE

A tenant sought a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005. On 1.8.2012 the Court directed KESCO to grant the connection if Clause 4.4 formalities were complete, or to show cause, and did not treat pending landlord litigation as a reason to withhold supply. Listed later as infructuous, with none appearing for the petitioner even on the revised call, the writ was dismissed as infructuous on 2.2.2016 and any interim order was discharged.

FACTUAL SUMMARY

Rahulpuri, a tenant, applied to Kanpur Electricity Supply Company for a new connection, saying he had completed the papers required under Clause 4.4 of the U.P. Electricity Supply Code, 2005. The licensee withheld the connection because of pending litigation with the landlord. After a 2012 conditional direction to connect if formalities were complete or to show cause, the writ was listed in 2016 as infructuous; the petitioner was absent even on the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection withheld for landlord litigation

HOLDING

On first listing the Court directed the licensee to give the tenant-petitioner an electricity connection if he had completed the formalities under Clause 4.4 of the U.P. Electricity Supply Code, 2005, and not to withhold it merely because of litigation with the landlord, or alternatively to show cause. The writ was later dismissed as infructuous and any interim order stood discharged, without a merits finding on those facts. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMPLETED CLAUSE 4.4 FORMALITIES, AND WHETHER LANDLORD LITIGATION WAS A LAWFUL GROUND TO REFUSE A TENANT'S NEW CONNECTION

The 1.8.2012 order was only conditional (connect if formalities complete, or show cause). The 2.2.2016 dismissal as infructuous decided neither issue on merits. ¶ 1-2